

inter loca prædicta ex una parte vel altera ponat vel præficiat, seu poni vel præfici fac. sub pena quadraginta librarum ad opus nostrum solvend. Vobis præcipimus, quod præmissa omnia et singula in Civitate prædicta et Suburbis ejusdem, in locis ubi melius expedire videritis, publice proclamari et firmiter observari fac. Teste ut supra.

The Epilogue.

I shall close up my *Animadversions* and *Amendments* with this *Epilogue*, of other misquotations or mistakes of *Records*, and supply of defects in their Numbers or Membranae, in the Margin and Text of this *Fourth Part* of the *Institutes*, not formerly touched, beginning with those in the *Placita coram Rege*, (kept in the Treasury of the Kings *Receipts* in the Exchequer at *Westminster*) the learned Author for the most part usually quoting the number of the Folio of Mr. *Agars Abridgments* of, and *Kalendars* to them, for the number of the *Roll* or *Record* it self, (though truly cited in the margin of Mr. *Agars Abridgement*) as I found by comparing both together. (the *Author* as it seems having no leisure to peruse or examine either of them himself;) and then proceed to those in the *Records* in the *Tower of London*; the list whereof may serve instead of a new and further *Errata* to these *Institutes*.

Page 72. l. 4. his 27 H. 3. coram Rege, rot. 9. *Hus, &c.* is not to be found in the *Exchequer* or *Tower*. P. 105. l. 34. marg. 34 & 35 E. 1. coram Rogero, &c. is rot. 75. *Middlesex*. P. 182. l. 7. marg. Hil. 32 E. 1. coram Rege, rot. 91, 97. have nothing in them for which they are quoted. P. 200. l. 24. marg. Mich. 26 E. 1. coram Rege, *Will. de Ludars* case, (is rot. 43. omitted.) P. 215. l. 1, 2. marg. Pasc. 9 E. 2. coram Rege, rot. 32. should be rot. 113. *Cestria*. P. 241. l. 32. marg. rot. 73. should be rot. 115. P. 270. l. 45. marg. rot. 133. *Ebor.* should be rot. 88. *Ibid.* l. 47. rot. 108. *Glouc.* should be rot. 78. P. 271. l. 36. marg. rot. 80. *Ebor.* should be rot. 132. P. 280. l. 5. rot. 124. is rot. 22. *Essex*. P. 286. l. 5. rot. 109. *Jersey*, is rot. 89. P. 308. l. 5. marg. Tr. 2 E. 3. coram Rege, rot. 12. is a mistake in both. P. 313. l. 9. marg. rot. 103. *Ebor.* should be rot. 106. P. 338. l. 30. marg. rot. 157. *Norff.* is rot. 114. *Ibid.* l. 32. rot. 170. is rot. 46. the Folioes of Mr. *Agars Abridgement* being quoted in most of these, for the Number Roll. As for the Rolls he quotes in *Com. Banco*, in his margin p. 100, 101, 102, 202, 210, 258, 261, 270, 314. I have not had leisure to examine them with the *Records* themselves in the Office of *Receipts* in the Exchequer, having had trouble enough to examine those premised. The mistakes in them may justly admonish all who shall have any occasion to vouch or make use of those in *Com. Banc.* to compare his quotations of them with the originals, before they relye upon them; and should excite some industrious Professors of the Law, to undertake this Task, to rectifie all his mistakes of *Records* in the *Common Pleas*, and other Treasuries at *Westminster*, for their own and other Lawyers publick benefit; and not repute it a superfluous or useles undertaking, as some have done, upon no other account, but because they are unwilling to be at the pains or cost to examine them, or cited them as genuine; and therefore would have all repute them *true* and *infallible* quotations, not fit to be doubted, much less questioned or rectified, though mistakes: As *Popes* and *Romanists* refuse to correct or discover the grosse *ridiculous false Legends, Miracles, Impostures* in the *Lives* of their *Romish Saints*, * because they have been so long preached by crafty covetous *Priests, Monks*, and received, believed by the over-credulous deluded ignorant people, though most notorious *falsehoods, impostures*, and the correcting of them would convince their *Popes, Church* of *Errors*, and not to be *infallible*. I shall next give you an account of some few more *mistakes, misquotations, and defects* of Membranae in *Records* in the *Tower of London*, cited in these *Institutes*.

† See Ribadeniera his Preface to his *Fleures des Vies des Seints*.
* In Antoninus his *Chronica Lippomanes, & Laurentius Surius Hist. Sanctorum*, Cragrave, Ribadeniera, and others.

Page 45. l. 13, to 19. marg. Claus. in dorf. 11 E. 3. pars 2. m. 11. &c. hath no such words as are there quoted. P. 60. l. 9. marg. 22 lib. Ass. pl. 52: hath nothing in it for which it is cited. The case of *Redland contra Spinke, coram Rege & Consilio*, l. 20. cited to be in Rot. Pat. part. 2. 38 E. 3. m. 13. & l. 23. *Ralph Brantingham's* case, cited to be Rot. Pat. part. 1. 39 E. 3. m. 13. are not to be found in those Membranes or Rolls, upon my diligentest perusal of them, being mistakes or misquotations.

Cap. 5. p. 60, & 61. (*Of the Honourable Court of Star-chamber*;) abound with several mistaken numbers of membranes, misquotations, and some grosser mistakes, which I cannot pretermitt, though that Court be suppressed.

Page 60. l. 37. Rot. Claus. 16 R. dorf. m. 11. the Abbot of St. *Augustines* case, is truly cited: & Pat. 6 H. 5. and the case of *William Godred* and his wife against *H. S.* (I found in m. 7. of that Roll, which he omits;) In Pat. 7 H. 5. (m. 12. omitted by him) I found the case between *Thomas Weddile* and others; against *Johan Manors* and others for certain *Manors*, for which there were suits depending *coram Rege & Consilio suo*; and that sequestrations of the *Manors* were granted by consent of the parties into the Kings hands to preserve the peace; till a certain time, by which those suits might be determined: But all these suits before the King and his Council for the Right, Title to the *Wrec, Manors, Lands* in question, I conceive to be only held before them in Parliament, not in *Star-chamber*; (named not in these records) which intermeddled not with rights, Titles to *Liberties, Manors* or *Free-holds*, as *Parliaments* usually did, but only with *misdeemeanors, crimes*, which were *mala in se*, or *mala prohibita*, as the Statute of 3 H. 7. c. 1. and himself in these his *Institutes* resolve, p. 62, 63.

* See Rylye his Placita Parliamentaria.

Processus inter Jacobum Daudeley & Elizabethum uxorem Nicholai Daudeley coram Consilio Regis.

Ibid. l. 41. An. 41 E. 3. Rot. Claus. in a Bill of Complaint exhibited to the King by *Elizabeth* the widow of *Nich. Audeley* plaintiff, against *John Audeley* defendant, who appeared before the Kings Council, viz. the Chancellor, Treasurer, Justices, and others, assembled en le Chamber des Escoiers pres de la rechetes. In which case, as the Author omits the *membrana* of the Roll, viz. m. 12, 13. here supplied: so he is culpable of many mistakes therein; 1. In making *Jane Audeley* Defendant in this case, instead of *James Audeley*. 2ly. In placing this case under the Title of the Honourable Court of *Star-chamber*, *Coram Rege & Consilio suo*: as properly belonging to, and determined by that Court as such: when as the very beginning of the Record assures us, it was, *Al Parlement nostre Seigneur le Roy tenuz a Westminster le quint jour de May, l'an de son regne 40.* wherein *Elizabeth* femme *Monf. Nich. Daudeley* pursue a nostre Seigneur le Roy, to have an estate of 400 marks a year settled on her, according to Contracts and Agreements made with her Mother *Alice* Countesse of *Bogan*, before her marriage with his sonne *Nicholas*, which assurance he refused to make; for which she prayed remedy of the King in Parliament, not in the *Star-chamber*; Whereupon, nostre Seigneur le Roy fist venir le dit *Monf. James* devant son Conseil, cest assavoir, Chancelier, Tresorier, Justices et autres Sages assemblez in la Chambre de Escoiers, &c. (where they met for this purpose as his Council, or a Committee in Parliament, not as a *Star-chamber Court*.) Et sur ce le dit *Monf. James* se mis haute & bas en la agard et Ordenance nostre Seigneur le Roy et de son Conseil de les pletres suivantes, et le dit *Elizabeth* auynt: The whole debate, proceedings and award made therein by the King and his Council are recited in the Roll at large, with the penalty if not performed by the Defendant, against whom they awarded damages to the Complainant; After which, the performance of the award was acknowledged by both parties before the Council, and in the *Chancery*, and the acquittance of the money paid therein enrolled in *Chancery*: In fine, (the Parliament being ended) la dite *Elizabeth* detent en propre persone en la dit Chancelerie, (not *Star-chamber*) et pria jour outre, quel jour luy est done a sa request. So as this case hath no relation to the *Star-chamber* as a Court, but only as to a place where those Lords met as a Committee of Parliament to hear and end this Petition delivered to the King in Parliament.

Hbb

Ibid.

Ibid. l. 47. Cl. 17 H. 6. *John Fords* Case and confession is truly cited, but *membrana* 6. (omitted by him) wherein it is enrolled.

Page 61. l. 11. margin: he omits *m. 4. dorso*, after Cl. 11 H. 4. *Robert Dangers*, not *Davers* case. Ib. l. 15. (*m. 2.* is omitted) after Pat. 3 E. 4. part 2. *Richard Herons* case. Ib. l. 18. (*m. 26.*) omitted after Pat. 20 E. 4. pars 2. the Abbot of *Burges* case.

* See an Exact Collection of the *Marshallsea*, but only the extorsions of the Archbishop of York and his Clerks, Records in the for admissions of Priests to benefices. Page 282. l. 2. nu. 211, 212. should be Tower, p. 128, nu. 200, 201, 202.

136, 140.

Page 194. l. 14. Marg. he quotes 13 E. 1. m. 24. when as there are but 19 membranaes in the Roll, and nothing in them for the purpose for which quoted. Pag. 205. l. 31. to 36. marg. quotes Pat. 1 H. 4. (whereof there are 8. parts) intituled *Carta Regis H. 4. Pro separatione Ducatus Lancastrie à Corona auctoritate Parliamenti*; instead of *Rot. Parl. An. 1 H. 4. nu. 82.* truly cited, p. 209. l. 19, to 25.

Cap. 66. p. 280. *Of the Kings Swanheard*, l. 10. he quotes, *Rot. Patentium An. 11 H. 4. part 1. m. 14. & Rot. Pat. 30 E. 3. part 1. m. 20. For the Office of Magister deductum Cygnorum*, in neither of which Rolls or Membranaes is any thing, I can find upon search, to that purpose: only in Pat. 16 R. 2. pars 1. m. 38. this King granted to *Baldwin Bedford Knight*, all wilde Swans flying without a mark in the Countyes of *Bedford and Holland*, and all Swans there forfeited to him, to be taken by *Ralph Scot, Custodem Cignoium nostrorum*, five per alium quemcumque qui pro tempore Custos Cignoium nostrorum predictorum fuerit. T. R. apud Castrum suum de *Notingham*, 23 die Junii. Per breve de *Privato Sigillo*.

I shall only inform you of 3. other mistakes worthy special observation:

The First, in his Chapter of the *Starchamber*, Page 60, line 29, &c. in the Text. The case of the *Abbot of Bruera*, and *Robert Ragg* his fellow Monk, *Rot. Clauf. 42 E. 3. m. 8.* dorf. Though the Roll thereof be truly quoted; yet the case is misreported in two particulars: First, that they were sentenced *Coram Rege & Consilio* for raising a Record: (to wit, *for the Monks raising the word *Fiffe-bida* out of the Charter of divers Lands and Liberties granted to the Abbot and Monks of that Abbey by King *Rich. 1.* and inserting *Esflegb* in its stead, and then procuring it to be confirmed by the Charter of King *Edward* the 3d, with the name of *Esflegb* in it, and endeavouring to have the Charter thus ratified allowed in the *Kings Bench* in a suit between him and the Abbot of *Cirencester*: which rasure the Abbot alleged was made without his privity;) When as there was no penal sentence passed against their persons in the Record, it being done without the Abbots knowledge, and the Monk then fled from the house. 2ly. In affirming that this was done *Coram Rege & Consilio* in the *Honorable Court of Starchamber*; and that the *Letters Patents* were there by sentence cancelled: when as the Record is; That this *Cognitio Abbatis de Bruera*, and all these proceedings were, *facta coram Rege in Cancellaria sua in Quindena S. Michaelis, &c.* at which day the Abbot was summoned to appear by the Kings Writ, & bring the rased Charter of King *Richard* coram *Consilio nostro apud Westm. &c.* Ad quem diem prefatus Abbas de Bruera dictam Cartam de confirmatione Domini Regis nunc super dicta Carta predicti Ricardi Regis sic in verbo predicto rafa facta ad dictam Cancellariam (not *Cameram Stellatam*) detulit; and there averred, quod ipse nunquam eandem Cartam illam rasam, si qua fuerit, vidit, nec penes se habet, &c. ita quod Cartam illam aliquo modo habere non potest: Per quod dicta Carta confirmationis restituitur, cancellatur & damnatur, in the *Chancery*, (the proper Court to examine and cancell rased Charters,) not *Starchamber*; as the Author too grossly fancied.

* Omitted in the Institutes, p. 60.

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The Second, is in Page 61. line 3. &c. which very confidently relates, That the *Abbot of Westminster* exhibited his *Bill* to the *King* against the *Sheriffs* of *London*, for arresting and drawing out with force a privileged person out of the *Sanctuary* of *St. Martins le grand*, belonging to the said *Abbey*, &c. Which matter after due proceedings being heard in the *Court of Starchamber* before the *Lords* and others of the *Kings Council*, and *Hodey* and *Newton* Chief Justices: which Justices determining, that by Law the party ought to enjoy the privilege of *Sanctuary*, the *Sheriffs* were grievously fined in *Starchamber* by particular name. Which Sentence the *Lord Dier*, as he reported under his own hand, saw upon a reference to him and Justice *Southcote* out of the *Starchamber*, Trin. 11 Regine Eliz. concerning the *Sanctuary* of *Westminster*, &c. and the *Lord Dier* made this Note with his own hand. *Rota, per le Starchamber*. And this is a notable proof of the Jurisdiction of the *Court* for fining, &c. That the *Bill* was exhibited to the *King*, and that the two Chief Justices then did sit, and were Judges (among others) in that *Court*.

But this Case is too grossly mistaken, misreported both by the *Lord Dier*, (if this Report of him be true) and by the reverend Author of the *Justities* in sundry particulars: First, in the year, An. 29 H. 6. as his *Margin* quotes it, without any *Roll*, wherein to find it: when as it was Anno & Pat. 19 H. 6. parte 3. m. 3. insua, as the *Record* attests. 2ly. In the party Complainant; which he makes to be the *Abbot of Westminster*: affirming, the *Sanctuary* of *St. Martyns* belonged to the said *Abbey*; when as the plaintiffs were the *Dean and Chapter* of *St. Martyns the Great London*; being the *Kings own Free Chappel and Sanctuary*, not the *Abbot of Westminster*, and so a violation of the rights of the *King* and his *Crown*, as the *Kings Writ* thereon, and exemplification thereof, *Pro Decano & Capitulo Sancti Martini magni London*. assure us, and many other Records concerning *St. Martyns* being the *Kings Free Chappel*. 3ly. In the number of Defendants, the *Mayor* as well as *Sheriffs* of *London* being Defendants, as the *Kings Writ* to them inform us: 4ly. In the number of the privileged persons taken by force out of the *Sanctuary*, being not one, but five. 5ly. In the manner of proceeding; That the *Abbot* exhibited his *Bill* to the *King*, &c. when as the *Dean and Chapter* only petitioned the *King* in writing. 6ly. That the matter was heard in the *Court of Starchamber* before the *Lords* and others of the *Kings Council*: when as the *King* referred the examination of the *Right of the Sanctuary* and *Petition* to his *Chancellor* and *Treasurer*, to report the same unto him when examined; who by the *Kings* command called both the Chief Justices to their assistance: and when they had heard the *Records*, *Charters*, *Bills* and allegations of both parties; reported the whole matter and their opinions to the *King*, That the *Prisoners* ought to be restored to the *Sanctuary*; which the *King* accordingly ordered, by advise of others of his *Council* present at their report. 7ly. That the *Sheriffs* were grievously fined in *Starchamber* by particular name: And that this is a notable proof of the Jurisdiction of this *Court* for fining, &c. A notable pretident of his mistakes: when as there was no fine at all imposed on the *Sheriffs*, or any others, but the prisoners only restored to the *Sanctuary*, as the *Record* thereof informs us. 8ly. That the two Chief Justices then, did sit and were Judges amongst others, in that *Court* of *Starchamber*: when as they sat not in the *Starchamber*, not once named in the *Record*; but in the *Chancery*, as assistants to the *Chancellor* and *Treasurer*, to whom the *King* referred this case, and wherein all the proceedings then were, and still remain recorded. For the irrefragable proof of all which particular mistakes by the *Record* thereof, I shall here present you with its examined transcript.

R EX Omnibus ad quos, &c. salutem. Inspeximus quoddam Recordum super quodam Breui nostro Roberto Large nuper Majori, ac Philippo Malpas & Roberto Marchall nuper Vicecomitibus London. ad prosecutionem Decani et Capituli liberæ Capelle nostræ Sancti Martini Magni London. directo, et in filactis Cancellar. nostræ residens, factum in hæc verba. Dominus Rex misit

Hhh 2

Breve

Pat. 19 H. 6.
pars 3. m. 2.
dors. De Exemplificatione
pro Decano &
Capitulo S.
Martini Magni
London.

Breve suum clausum *Roberto Large* nuper *Majori*, ac *Philippo Malpas & Roberto Marshall* nuper *Vicemcomitibus London.* cujus tenor sequitur in hęc verba. *Henricus Dei gratia Rex Angl. & Franc. & Dominus Hibern.* Majori & Vic. *London.* salutem. Gravem querimoniam dilectorum nobis in Christo *Decani et Capituli liberę Capellę nostrę Sancti Martini Magni London.* recepimus, continenter, qualiter à tempore & per tempus cujus contrarii memoria hominum non existit, fugientes ad Capellam nostram prædictam, pro immunitate ejusdem habend. seu in eadem ex quacunque causa existentes et residentes, quieti fuerunt et immunes, et sic esse debuerunt et debent ab omni Jurisdictione, arrestatione, impedimento sive attachmento *Majoris et Vicemcomitum Civitatis prædictę*, aut *Officiorum seu Ministorum suorum quorumcumque pro tempore existentium*, quousque vos præfati *Vicemcomites* libertatem et immunitatem *Capellę nostrę prædictę*, a tam longinquo tempore bene usitatam, et inconcussę observatam, maliciose violare et infringere satagentes, *Capellam prædictam* cum multitudine gravi jam tarde introiitis, ac *Johannem Knyght, Johannem Rede, Thomam Blackbourns, Willielmum Janyver, & Richardum Morrys*, qui in eadem *Capella* causa immunitatis ejusdem habend. residebant, auctoritate vestra propria violenter extraxistis, et eos prisonę nostrę *Civitatis prædictę* commisitistis, eosque ibidem adhuc detinetis, in Libertatis Ecclesiasticę lesionem, ac * *Coronę et dignitatis nostrę regis derogationem et præjudicium manifesta.* Unde nobis humiliter supplicarunt, ut pro consideratione iuris Ecclesiastici et nostri in hac parte prospicere dignaremur; Nos iura, libertates, immunitates et consuetudines præfate *Capellę nostrę* firma et inviolata, prout vinculo juramenti in *Coronatione* nostra astringimur observari volentes, ac supplicationi dictorum *Decani et Capituli* in hac parte benevole inclinati, vobis districtius quo possumus injungendo mandamus, quod statim post receptionem præsentium, præfatos *Johannem, Johannem, Thomam, Willielmum & Richardum*, præfato *Decano* seu ejus *Commissario* adeo libere et integre, tam corpore quam bonis, sicut eos vos præfati *Vicemcomites* à *Capella* nostra prædicta, ut præmittitur, abstraxistis, restituatistis et realiter liberetis, taliter quod dicti *Decanus et Capitulum* in vestri culpam seu defectum causam non habeant nobis iterum conquerendi. Et hoc sub fide & ligeantia quibus nobis tenemini nullatenus omitatis. Teste meipso apud *Castrum nostrum de Wyndesore* 12 die *Septembris*, anno regni nostri 19. Quo quidem brevi dictis *Majori & Vicemcomitibus* per *Johannem Comitem Huntingdon* de mandato regio liberato, ac per eosdem recepto, non obstante præfatos *Johannem, Johannem, Thomam, Willielmum & Richardum*, dicti *Major & Vicemcomites* in prisona ut prius detinuerunt, nec eos secundum effectum *Brevis* prædicti ad *Sanctuarium* prædictum liberari curaverunt. De quo *Rex* postea informatus, oretenus præcepit venerabili in Christo patri *Johanni Episcopo Bathon.* Cancellar. ac *Radulpho Domino de Cromwell Thesaur. Anglię*, quod in dicta materia restitutionis *Prisonariorum* prædictorum ad dictum *Sanctuarium Sancti Martini* cognoscerent, ac *Regi* super eadem quid iuris per examinationem partium invenerint reportarent. Qui de mandato regio, assumptis secum *Dominis Johanne Hody & Richardo Newton*, *Capitalibus Justic.* Regis de utroque Banco, vocaverunt prædictum *Decanum* ac dictum nuper *Majorem et Vicemcomites* coram se, insurgentes dicto *Decano* ex parte *Regis*, quod si quid pro parte sua haberet quare dicti *Prisonarii* ad *Sanctuarium* prædictum restitui debeant, ut petebat, ostenderet; & parti dictorum *Majoris & Vicemcomitum*, quod si quid pro parte sua haberent quare iidem *Prisonarii* non deberent ad dictum locum restitui, consimiliter ostenderent coram eis, ad effectum ut hiis auditis et intellectis per eos *Regi* inde sicut in mandatis habuerant reportarent. Cui mandato partes prædictę obediētes, *Decanus* prædictus protulit coram *Dominis* querimonias suas in scriptis, ac *Chartas Regias, Bullas Papales*, et alia munimenta et probationes, quarum querimoniarum et probationum copiis adversę parti per dictos *Dominos* decretis, et die ad respondend. &c. Eadem pars die assignato, eidem respondebat in scriptis. Cui responsioni dictus *Decanus* replicavit in scriptis, et ultra hoc protulit multa et varia genera probationum

* Nota.

in scriptis facientia, ut apparuit pro parte sua. Et pars altera è contrario, etiam in scriptis pro se protulit prætentarum plurima genera probationum quæ omnia exceptis Bullis et Chartis remanent hijs annexa in Cancellar. Regis de Recordo. Quibus quidem Chartis Regijs, & Bullis Papalibus, ac alijs munimentis probationibus hinc inde & scripturis, per Dominos Cancellarium, Thesaur. ac Justic. prædictos cum magna maturitate sapientius vixit et intellectis: Consideratum fuit per dictos Dominos Cancellar. et Thesaur. de abusamento et consilio Justic. prædictorum, quod personæ prædictæ a Capella prædicta violenter abstraxerunt, restitui debeant ad eandem tanquam ad locum plenarie libertate, tam de jure quam consuetudine gaudere debentem, et non de Civitate prædicta, nec Possorij, Vicecomitum, Aldermanorum, aut Officiorum ejusdem Jurisdictioni, seu districtioni substat. sed eisdem immunitatibus, privilegiis et libertatibus quæ *Westm. Beverley*, aut quibvis alius locus privilegiatus in *Anglia* meliores habet, tam de jure quam consuetudine pro se et proinde ejusdem, ad tuend. qualcumque personas pro quibuscumque causis criminalibus sive civilibus illuc confugientes gaudere debentem, et sic ad tunc per eosdem Dominos et Judices fuerat decretum et sententialiter adjudicatum; eo quod verba generalia libertatum & consuetudinum in Charta Domini Regis *Wilhelmi Conquestoris* contenta, una cum earundem à tempore quo non extat memoria usu quasi continuo valida sunt in jure pro Capella prædicta et proinde ejusdem, ut secundum quod in Chartis, Bullis et probationibus per dictum Decanum prælati continetur apparet. Et super hijs omnibus dicti Domini Cancellar. et Thesaur. die sequenti fecerunt * relationem plenariam Domino Regi. Super quibus idem Dominus Rex præcepit eidem Cancellar. suo, quod per Breve suum Vicecomitibus *London.* dirigend. venire faceret in Cancellar. suam corpora ipsorum *Johannis, Johannis, Thoma, Wilhelmi & Richardi*, à Capella prædicta, ut præfertur, extractorum, una cum causa eorundem captionis & detentionis. Quibus quidem *Johanne, Johanne, Thoma, Wilhelmo & Richardo*, coram Domino Rege in Cancellar. suam per prælatos Vicecomites de mandato regio adductis, iidem Vicecomites de abusamento et consensu Dominorum Ducis *Gloucestr.* ac Cardinalium Sancti *Ensebiij*, & Sanctæ *Sabine de Angl. & Ebor.* vulgariter vocat. et aliorum Regiorum Consiliariorum, et per considerationem Curie, de omnimoda custodia corporum prædictorum *Johanni, Johanni, Thoma, Wilhelmo & Richardi* totaliter exonerati fuerunt, et iidem Prisonarii in præsentia eorundem Vicecomitum ac Recordatoris, et Consilij Civitatis prædicti ad hoc evocatoz, *Thoma Colledge* Servienti Domini Regis ad Arma, personaliter liberati ibidem, ad effectum, quod idem Serviens dictos Prisonarios et eorum quemlibet usque dictam Capellam et Sanctuarium salvo et secure adduceret, et eos ibidem de mandato regio præfato Decano sive ejus Deputatis liberaret, et ibidem juxta libertates, privilegia et immunitates prædicta in Sanctuario prædicto quamdiu eis placeret motatur. Sicque idem Serviens eos & eorum quemlibet in Vigilia Omnium Sanctorum anno 19. Regis nunc prædicti, præfato Decano infra Sanctuarium prædictum realiter juxta mandatum regium, decretum et considerationem prædict. liberabit. De qua quidem liberatione tam per attestationem dicti Servientis ad Arma, quam confessionem dicti Decani præfatis Dominis Cancellar. et Thesaur. ac Cur. Cancellar. in crastino Animarum tunc prox. sequen. ad plenum innotuit et extitit facta fides. Nos autem tenorem Recordi prædicti ad requisitionem prædictorum Decani & Capituli duximus exemplificand. per præsentis, In cujus, &c. Teste Rege apud *Westm.* 26 die *Novembrij.*

* Nota.

How far these two Reverend Chief Justices Reports of, and Inferences from this Case for the Star-Chamber Courts Jurisdiction, Proceedings, fixing, &c. vary from the Record it self, in all the premised particulars; and how unsafe it is to take Records upon trust, from the reports of learned Judges, who never read nor perused their originals, let the indifferent Readers judge by this president, and that which next follows,

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The Third, is Page 61. l. 34. *The Kings Counsel assembled in the Starchamber; The Lord Cromwells case*, Rot. Cl. 28 H. 6. so the Margin; (and that as in a Court of Justice to punish riots, as the Author intends by placing it under his Title *Of the Honourable Court of Starchamber*, and inserting it in the midst of other cases there sentenced. In which there is a double mistake; First, in the quotation of Rot. Cl. 28 H. 6. and that in grosse: wherein there is not one syllable to that purpose: when as the case of the Lord Cromwell he cites and meant, is mentioned only in Rot. Parl. Anno 28 H. 6. nu. 56. in the Commons impeachment of *Talboys* in that Parliament. 2ly. That the *Lords of the Kings Counsaile* assembled then in the *Starchamber*, as a *Court*, not as in the *Kings Counsaile house sitting the Parliament*, about the affairs thereof; upon which account they then met in it: where *William Talboys*, a Common Murderer, & Breaker of the Peace, accompanied with divers other riotous people, arrayed with *Jacks, Salletes, swords and glaives in manner of warre*, intended maliciously to slay and murder the Lord *Cromwell*, the King being there at that time in his High and Royal Court of Parliament: *The which great riot thus done in the fourme aforesaid*, (as the Commons expressly declare in their appeachment of him for it, in that Parliament) is one of the gristeft, beynous, and most odious riots that hath been seen in your time, or in the time of your Progenitors, and most perillous ensample to alle misdoers and riotours, if this be not openly, duely and discreetly punished. Of which riot and offense so done in your said Palays (where many great Lords of your Counsaile by your high command were assembled in your Counsaile house called the *Sterre Chamber*, within your Palapes of *Westminster*) wee your Commons of this your Realm in this your present Court of Parliament assembled, accuse and appeache the said *William Talboyes*. Beseeching your High and most Noble Grace of your great Righteousnesse; that this our Petition may be enacted in this your High and Royal Court of Parliament: wherein they prayed, That the said *William Talboyes* might be sent Prisoner to the Tower of London, and there kept without bayl or mainprize for 12. moneths space next after such Commitment, and brought to answer all Indictments against him for it, and other riots, befoze the King and his Justices in his Bench within the said time: And that if the Constable of the Tower or his Lieutenant should suffer him to escape or go at large out of the Tower, they should forfeit the sum of *40. lb.* the one moiety to the King, the other to him who would sue for the same against the Constable and Lieutenant. To which Article of the Commons Petition and Bill the King assented. So as this Record and Case hath no relation at all to the *Starchamber* as a Court, nor yet to its Jurisdiction to punish notorious riots against any Lords of the Counsil sitting in it; but only to the * *Priviledge of Parliament*, their Members, and the *Kings Palace*, sitting Parliaments, and to the Jurisdiction of the *Kings Bench* to punish riots, to which this transcendent Riot was specially recommended by the Commons Petition and Impeachment, not to the *Starchamber Court*.

* See the 4th Part of My Brief Register &c. p. 732, to 735.

In his Chapter of Precedency. Page 360. line 24, 25. he writes. *The same King created Edward of Haddam to be Earl of Richmond, and granted him precedency before all other Earls, and also created Jasper of Hatfeild Earl of Pembrock, and gave him precedency before all other Earls, next to his Brother Earl of Richmond: omitting Rot. Parl. An. 31 H. 6. nu. 50, 51. by which they were created Earls, and had this precedency given them in and by Parliament.* And, Page 364. line 13, &c. He observes. *In ancient time the Archbishops and Bishops had great precedency, even before the Brother of the King, as appears by the Parliament Roll of 18 E. 1. and many others; which continued till it was altered by Ordinance of Parliament in the reign of King Henry the 6, as it appears by a Roll of Parliament in that Kings reign, entred in the back of the Parliament Roll before all Dukes & Great Officers of State: but that they took place, and had precedency of them in all Parliaments and Counsils, cannot be inferred from thence.*

ment Roll: Wherein, I humbly conceive, there are three mistakes: First, there is no such Parliament Roll of An. 18 E. 1. extant, as he cites, unlesse he means the Roll of *Placita Parliamenti*, or *Petitiones Parliamenti*, An. 18 E. 1. in the Treasury of the Kings Records in the Exchequer; in which I can find no evidence or proof, That our Archbishops or Bishops had then precedency of the Kings Brother. 2ly. That this their precedency continued till the reign of King Henry the 6. 3ly. That it was then altered by an Ordinance of Parliament entred in the back of the Parliament Roll. Had the Year, *membrana*, or number of the Parliament Roll wherein he affirms this Ordinance is entred, been mentioned by him, I could then have easily discovered the truth, or mistake therein; but that ing omitted, and I having not yet been so happy, to meet with any such Parliament Roll or Ordinance in Henry the 6. or any other Kings reign; and our most diligent searcher of all Records and Antiquities of that kind (Mr. John Selden) making no mention at all thereof in his *Titles of Honour*, and Chapter of *Precedency*, for which it was most pertinent, (as no doubt he would have done in his last *Impression* with large additions, had there been any such Roll extant:) I must say of it and other uncertain Records he cites, as the * Poet did in another * Ovid. *Metamorph.* *Quod non invenit usquam, esse putat usquam;* or else plead, *nul tiel Record,* till produced in open Court to publike view.

I shall cloze up all; with St. *Augustine's* words and resolution, to those who have erred and been deceived by the premised, or any other misquotations of this Reverend Judge and famous Author, who hath merited eternal honour and just respect from all of his profession, (to whose memory I shall pay all deserved homage, without prejudice to truth) who probably was sometimes deceived by other mens Notes, and misquotations. † *Humanum est errare, non errare Angelicum; animositate in errore perseverare Diabolicum. Melius quidem erat nunquam erravimus, sed quod secundum est faciamus, ut errorem aliquando emendemus. Dicunt falsi; decipimus, quia decipi eramus; simul erravimus, simul ad errorem redeamus.* † *Retraçat. l. 1. c. 1. contra Donatistas, Tom. 7. & De Verbis Apostoli, Sermon. 24.*

FINIS.

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